CONTRACT FOR WORK IN THE FRAMEWORK OF A PV PROJECT OF 3.32 MW, LOCATED IN SHIA, CYPRUS (THE CONTRACT)

entered into the 12th of February 2026

BETWEEN

ML Helios Systems LTD. having its registered office at Afrodites 25 office 101, 1060 Nicosia, Cyprus , with Registration No. HE434425, TIC No.: [10434425J], V.A.T. No: [*] and duly represented by Managing Director, Mr. Vladimir Novikov (hereinafter referred as the **"Investor"** or **"Borrower")**

AND

TÜV AUSTRIA CYPRUS LTD, having its registered office at 205, Yiannou Kranidioti Avenue, 2234 Latsia, Nicosia - Cyprus, with Registration No.: HE226539, TIC No.: 12226539T, V.A.T. No. 10226539R and duly represented herein by General Manager Mrs. Sousanna Charalambidou (hereinafter referred to as the **"Consultant"**)

AND

Eurobank Ltd, a credit institution duly incorporated, validly existing and operating under the laws of Cyprus, having its registered office at 200 Lemesou & Athalassas, Strovolos, 2025, Nicosia, Cyprus, (hereinafter referred to as the "**Financial Institution**"),

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WHEREAS

(1) **The Investor** is a company owning a PV Project of 3.32 MWp, located in Shia, Cyprus (the **Project**) and is in discussion with **the Financial Institution** for the potential financing of the Project.

(2) **The Investor,** in order to facilitate the due diligence process on the Project in view of the contemplated financing, requires the collaboration of an independent technical advisor who will provide a technical report with advice on all of the Project's technical matters.

(3) **The Consultant**, is an organization, specialised in the inspection and certification of energy production projects and in the provision of lenders' technical advisory services.

(4) **The Investor** desires to appoint **the Consultant** to provide independent technical advisory work on the Project, resulting in the production of a technical report, that will be furnished to **the Financial Institution and the Investor** according to the Technical Description, included in the Consultant's Proposal, attached as Appendix 1.

(5) Under this Contract, **the Consultant** accepts to provide to **the Financial Institution and the Investor** a technical report summarizing the results from the pre-financing close evaluation and annual operating reports (Work) that will be made available to **the Financial Institution** the interests of which it is intended to protect, and which will acknowledge the terms of the Contract by undersigning it. **The Consultant** also acknowledges that owing duty of care solely to **the Financial Institution**.

NOW THEREFORE IT IS AGREED AS FOLLOWS

1. Definitions

(1) In this Contract the following words and expressions shall have the meanings attributed to them below:

"Additional Work" means any work by the Consultant in addition to the technical matters described in Appendix 1, or any variations to the technical matters, advice on which **the Financial Institution** upon the **Investor's** approval may instruct the **Consultant** to include in the Work.

"Commencement Date" means the date on which the Contract is signed by all the Parties.

"Contract" means this contract.

"Copyright Work" means the drawings, reports, specifications, and other information and documentation and the designs contained in them, prepared or to be prepared by or on behalf of the Consultant in which there are any Intellectual Property Rights.

"Cost of Work" means the fees payable from the Investor to the Consultant as per clause 9.

"Intellectual Property Rights" means existing and future copyright, design rights, intellectual property rights and/or other rights of a similar nature.

"Law" means any national, municipal, provincial, local state or other law (including tax), statute, regulation, by-law, industry code or delegated legislation, notice, instruction, permit, consent, authorisation, licence or other requirement of a competent authority which has the force of law over or applicable to the Project or the Work.

"Necessary Consents" means all consents, licences, permissions and approvals whether of a public or private nature which are necessary for the carrying out and completion of the Project or the Services.

"Parties" means the Consultant, the Financial Institution and the Investor and Party shall mean any one of the Parties, as the context shall require.

"Project (or the Project)" means eight a PV project of 3.32 MWp, located in Shia, Cyprus.

"Services" means the assessment by the Consultant on behalf of the Financial Institution of the technical aspects of the Project and the preparation and provision of the Work, as detailed in the Technical Description of the Appendix 1.

"Standards" means the applicable European Engineering Standards (EN, IEC, DIN & ISO Standards).

"Work" means the technical report to be made available to the Financial Institutions and the Investor on the technical matters described in Section B.1, of the Appendix 1 and annual operating reports described in Section B.2, of the Appendix 1.

(2) In the event of any conflict within this Contract, the clauses of this Contract shall take priority over the Appendix.

(3) References in this Contract to:

(a) clauses or Appendices are to clauses or Appendices in this Contract

(b) including shall be construed to be without limitation

(c) a day shall be construed to be a working day

(d) masculine shall include the feminine and the singular shall include the plural and

(e) any Law shall be construed to be the Law as amended or re-enacted (with or without modification) from time to time.

2. Scope of the Contract work

(1) **The Financial Institution** hereby appoints **the Consultant:**

(a) to produce and deliver the Work in accordance with Section B of Appendix 1.

(b) to carry out its other duties and obligations under this Contract on the terms set out in this Contract.

(2) **The Consultant** shall, in producing and delivering the Work, exercise all the reasonable skill, care and diligence to be expected from a prudent, competent and properly qualified consultant of the relevant discipline experienced in the provision of like works for a project of a size, scope, nature and complexity and in a location similar to the Project.

(3) **The Consultant,** in producing and delivering the Work shall owe its duty of care solely to the **Financial Institutions** and the Consultant hereby acknowledges that the Work delivered by the **Consultant** under this **Contract** shall be for the benefit of the **Financial Institutions,** which will receive such delivery of Work as third-party beneficiaries to the Contract on a reliance basis.

(4) **The Consultant** shall carry out its obligations under the Contract in compliance with all applicable Laws, Standards and Necessary Consents.

(5) Upon being supplied with copies of, or relevant extracts from any other agreements **the Investor** or the **Financial Institution** may have entered into with other third parties relating to the Project or the Financing, **the Consultant** shall not by any act or omission on its part put **the Investor** or **the Financial Institution** in breach of their obligations under any such agreements provided that this clause shall not require the Consultant to carry out any work other than the Work and provided always that the terms of this Contract shall prevail over the terms of any such agreements to the extent of any inconsistency.

(6) **The Consultant** intends to approach the delivery of the Work in the manner specified in **the Consultant's** Proposal, attached as Appendix 1.

(7) **The Consultant** will directly make the Work available to **the Financial Institution and the Investor**.

(8) **The Consultant's** Fee will be paid by **the Investor** as per clause 9. It is expressly agreed that the Financial Institution shall not be liable under any circumstances to pay the Consultant's fees, any fees, taxes or expenses of whatever nature to the Consultant hereunder.

(9) **The Financial Institution**, the Investor and **the Consultant** agree that the Work can be disclosed to and used by:

(i) **the Financial Institution's** and (or) the Investor's affiliates, as well as their own and their affiliates' officers, directors, advisors, employees of, and individuals seconded to work for the Financial Institution and (or) the Investor, and

(ii) any potential transferees and/or potential/future lenders that may express an interest in writing to participate in the Financing of the Project according to the terms agreed herein.

Furthermore, the Work can be disclosed by **the Financial Institution and (or) the Investor** to their regulator(s) and/or any other competent authority and/or in case **the Financial Institution** and (or) the Investor are compelled to do so by law, regulation or court order or any governmental, judicial, administrative, regulatory, supervisory or other competent authority.

3. Variation to the Work

(1) **The Financial Institutions** upon **the Investor's** approval and (or) the Investor may instruct **the Consultant** to vary the technical matters whereon advice will be provided in the Work, including performing Additional Work.

(2) Any revised fees payable as a result of the varied or Additional Work shall be calculated (where appropriate) in accordance with clause 9 and will be due and payable by **the Investor**.

4. Delivery Time

(1) **The Consultant** will issue the technical due diligence report -addressed to **the Financial Institution and the Investor** -within thirty (30) working days after full submission of required documentation provided that all involved Parties will be available during said period for meetings (if required) and support and the construction progress report monthly after on-site visits summarizing all observations, findings and recommendations. After completion of the Project, a final inspection will be performed and a completion report will be issued. Work's language should be English language.

5. Insurance

(1) **The Consultant** shall maintain the professional indemnity insurance coverage of its parent company with limits of indemnity not less than €7,500,000 in the annual aggregate in full force and effect from the date of this Contract until the date that delivery of the Work is completed.

(2) Such professional indemnity insurance shall be with a reputable insurance company or underwriter and shall not be subject to any material excess or unusual exclusions.

(3) **The Consultant** will promptly provide to **the Financial Institution** any documents and/or policies and/or cover notes indicating the existence and/or renewal of any such professional indemnity insurance coverage, and in any case, not later than 2 (two) calendar days as from the date of such request by **the Financial Institution**.

6. Liability

(1) Notwithstanding any other term of this Contract, and to the extent permitted under Applicable Law, the total liability of **the Consultant** to a) the Financial Institution under or in connection with this Contract, and in the frame of the agreed scope of work, and b) to **the Investor** for matters under or in connection with this Contract, directly or indirectly (including matters pertaining to the data protection legislation, observance of confidentiality, if **the Consultant**, while in the process of performing the Work, or while performing any site visits at the Project's premises, it interferes with, or damages the Project, e.tc.), but excluding any compensation or liability for the provision of the Work, which are rendered exclusively for the benefit of the **Financial Institution** (except for willful misconduct or gross negligence, or unlawful act), shall not exceed the overall fees received by **the Consultant** under this Contract.

(2) In case of any willful misconduct or gross negligence or unlawful act of **the Consultant** during the performance of his duties and in the frame of the agreed scope of work under this Contract, his liability remains unlimited.

(3) The liability of **the Consultant** is limited to damages caused due to any breach of the Contract not due to force majeure. As Force Majeure is meant any event, beyond either Party's reasonable power or control, preventing this Party from performing the obligations enunciated herein. This includes acts of God, war, riot, civil commotion, the results of terrorist activity, accident, earthquake, fire, flood or storm.

On the occurrence of an event of Force Majeure, the Party so affected shall immediately serve notice on the other Parties specifying the nature and extent of the circumstances giving rise to the event of Force Majeure.

The Party claiming to have failed or to be delayed in the performance of its obligations under this Contract as a result of an event of Force Majeure shall use all reasonable endeavours to resume full performance without avoidable delay.

(4) **The Consultant** is liable for actions and omissions of its staff, managerial staff and bodies only if these took place during and because of the performance of their duties, and not for actions that took place not in connection with the performance of their duties or are wholly irrelevant with those.

7. Assignment and sub-contracting

(1) **The Consultant** may not subcontract the Work or part thereof to any person without the prior written consent of the Financial Institution. Upon provision of such consent **the Consultant** shall remain fully liable towards the **Financial Institution** and the Investor for the performance of the Work by the subcontractor.

(2) No **Party** may assign any of its rights and obligations under this Contract to any person without the consent of the other **Parties,** with the exception of **the Financial Institution** which may assign its rights and benefits under the Contract with a written notification of the other Parties.

8. Personnel and staff

(1) **The Consultant** will engage an adequate number of key experts in order to produce and deliver the Work within the timings specified in the Consultant's Proposal. The personnel that **the Consultant** intends to engage to comply with this Contract is presented in the Consultant's Proposal as per Appendix 1.

(2) **The Consultant** maintains the ability as it sees fit to engage key experts not listed in the table described in clause above provided that they have signed **the Consultant's** confidentiality code and after the approval of **the Financial Institution**. **The Consultant** declares that all such additional personnel will be bound by this Contract's confidentiality provisions.

(3) **The Consultant** shall be exclusively responsible towards the personnel it employs and towards any third parties for the strict observance of all provisions of labour and safety legislation and for the fulfilment of all kinds of obligations deriving from such labour legislation and from the labour relationship between it and the above personnel. **The Consultant** shall be exclusively responsible to pay in full and punctually all legal remuneration, fees, or compensation of any nature to whomsoever it shall employ in connection with the Contract.

(4) All personnel employed by **the Consultant** shall be fully insured in the respective insurance institutions with which insurance is compulsory, be it main or supplementary insurance, and the relevant insurance premiums (of employee and employer) as well as any other burden or charge deriving from the above shall be borne exclusively by **the Consultant**.

9. Price and terms of payment

(1) **The Investor** hereby agrees to pay **the Consultant** the fee for producing and delivering the Work, as follows:

No.	Description of service	Price (€)	Remark(s)
1	Phase No.1: Due Diligence	6.500	Lump Sum
2	Phase No.2: Construction phase – On-site visits	740	Per site visit
3	Phase No.3: Final visit and Completion Report	2.000	Lump Sum
4	Inspection & Certification	2.400	Lump Sum Including one site visit by TÜV Austria Hellas

(2) The above prices include the transportation costs regarding the on-site visits.

(3) The above prices do not include:

a) VAT (if applicable).

b) Work on-site on non-working days (Saturdays, Sundays, holidays). Upon requirement for work on site on non-working days an extra charge of €200/manday will be applicable and such cost should be pre agreed in writing by the Parties.

c) Laboratory costs for measurements and/or analysis, should they be required and provided the Consultant informs accordingly, beforehand, the Parties in order to agree on any such costs.

(4) The Parties will agree separately on any fees payable by the Investor for any Additional Work assigned to the Consultant by virtue of written instruction by **the Financial Institution** and approval by **the Investor or by the Investor**.

(5) The terms of payment are as follows:

(a) Payments to **the Consultant** shall only be made upon successful completion of the corresponding deliverables, as specified.
(b) No advance payment is foreseen.
(c) The Pre-construction phase – Engineering Due Diligence, the Construction phase – Progress Monitoring, the Final phase – Final inspection and Completion Report and the Inspection and Certification shall be payable within 30 days of invoice issue date.
(d) All fees due are to be invoiced to **the Investor**.

(6) All payments shall be made by **the Investor** to TÜV Austria Cyprus's account Nr. CY23018000010000300100019774 held with EUROBANK Cyprus Ltd.

(7) Where any amount properly due under this Contract is not paid in full within 15 days of the receipt of a Notice of Payment Default, **the Investor** shall (without prejudice to any other right or remedy) pay to **the Consultant** the statutory (in accordance with the applicable Law) default interest on such amount from that date until the actual date of payment.

(8) For the avoidance of doubt, **the Financial Institution** have no obligation to pay **the Consultant's** fee or any part of it under this Contract.

If **the Investor** disputes an item or part of an invoice of **the Consultant**, the Investor shall proceed with payment of the remaining part of the invoice which is not disputed and the two Parties shall endeavor in good faith to reach agreement on the part of the invoice which is disputed. If the two Parties fail to reach agreement the Dispute shall be resolved in accordance with Article 17. In case of such a dispute **the Financial Institution** will be immediately informed accordingly.

(9) For the avoidance of doubt, the Parties hereby agree that the Consultant may begin performing any phase of Work, with the exception of Phase No. 1, only upon receipt of a written notification from the Investor of the need to begin such phase of Work, following relevant communication between the Investor and the Financial Institution, otherwise the Consultant is not entitled to claim any payment for his services in connection with such phase of Work, as well as compensation for expenses and (or) any damages.

10. Termination of Contract

(1) **The Investor** has the right to terminate the Contract if:

(a) **the Consultant** becomes unable to pay its debts or makes any arrangement or composition with its creditors generally or has a receiver, manager, liquidator, administrator or trustee in bankruptcy appointed; or

(b) **the Consultant** has breached any of its obligations under this Contract and has failed to remedy such breach within 15 calendar days of receipt of a notice specifying the breach and requiring its remedy; or

(c) **the Financial Institution** decide not to proceed to Project's Financing; or

(d) with a prior notification to **the Consultant** of 15 calendar days without assigning any reason.

(2) **The Consultant** has the right to terminate the Contract if:

(a) **the Investor** becomes unable to pay its debts or makes any arrangement or composition with its creditors generally or has a receiver, manager, liquidator, administrator or trustee in bankruptcy appointed; or

(b) subject to clause 10, any amount falling due for payment to **the Consultant** under this Contract shall without due cause remain unpaid 45 days after it became due provided **the Consultant** shall have given **the Investor** notice of such default (a **Notice of Payment Default**) (sending a copy of such notice to **the Financial Institution** only for notification purposes, as the latter is not under any circumstances liable to pay **the Consultant's** fees and expenses) and such default shall have continued for a period of 15 days after receipt of such notice.

(3) **The Financial Institutions**, after informing **the Investor**, shall have the right to terminate the Contract for any reason, giving fifteen (15) calendar days' notice to **the Consultant, in which case** the Investor has the right to declare that the Contract remains in force and assume all the rights and obligations of the Financial Institutions under the Contract.

(4) **The Investor** shall have the right to terminate the Contract upon providing 15 calendar days' written notice to **the Consultant** in the event that the Consultant (i) fails to meet its obligations under this Contract, (ii) is found to be in material breach of any term herein, or (iii) engages in actions that result in a conflict of interest or otherwise compromise the integrity of the project, provided that prior written consent is obtained from **the Financial Institution**, who shall have thirty (30) days to object to such termination. In such cases, the Investor shall not be liable for any payments beyond those for services satisfactorily rendered up to the date of termination.

(5) Upon any termination of the engagement of **the Consultant** under this Contract **the Consultant** shall immediately take steps to cease the part of the Work which is affected by the termination in an orderly manner but with all reasonable speed and economy.

(6) In the event of the termination of this Contract, subject to any rights **the Investor** may have under this Contract or at law arising from any breach of contract of **the Consultant**, **the Investor** will pay to **the Consultant** the unpaid amount of the fee for the part of the Work already delivered by **the Consultant**, if such delivery is accepted by **the Financial Institution**. The calculation of the due amount will be based on the total number of hours worked by **the Consultant's** expert personnel. In any case, such amounts shall not exceed the agreed fees under clause 9 (1).

(7) Upon any termination of the employment of **the Consultant** under this Contract, howsoever arising, **the Investor** will not be liable for any loss of profit, loss of business, loss of contracts or any losses and/or expenses arising out of or in connection with such termination except as provided in clause 10(6) above.

(8) Upon any termination of the employment of **the Consultant** under this Contract, howsoever arising, **the Financial Institution** will not be liable for any loss of profit, loss of business, loss of contracts or any losses and/or expenses arising out of or in connection with such termination.

(9) Termination of the engagement of **the Consultant** under this Contract, howsoever arising, shall, subject to clause 6, be without prejudice to the rights and remedies of **the Consultant**, **the Investor** and **the Financial Institution** in relation to any negligence, omission, breach of contract or default of the other prior to such termination.

(10) The provisions of this Contract shall continue to bind the Parties insofar as and for so long as may be necessary to give effect to their respective rights and obligations hereunder.

11. Contract duration

(1) Notwithstanding the date of execution of this Contract, this Contract shall be deemed to have commenced on the Commencement Date and accordingly the rights and

obligations of the Parties hereunder shall for all purposes of this Contract be deemed to have commenced on and be enforceable from the Commencement Date.

(2) This contract shall be valid until the date of completion of the last Work of **the Consultant** pursuant to article D of **the Consultant's** Proposal as per Appendix 1, and acceptance thereof by the Financial Institutions, unless otherwise stipulated by written agreement of the Parties.

12. Confidentiality

(1) The Parties shall be obligated to keep in strict confidence and to bind all of their employees and any other third party involved in the Project, the Financing or the Work, to keep in strict confidence all the commercial and technical information received directly or indirectly from the other Parties (including information on the Project, the Financing, the Investor and their affiliates) under the Contract and (subject to the provisions under clause 2(9) of this Contract) shall not at any time disclose such information to any third party for any purpose other than that of the performance of the Contract without the prior written consent of the other Parties concerned, except:

(a) information which at the time of receipt is generally available to the public, or which after receipt becomes generally available to the public through no fault of the receiving Parties,

(b) information which the Party can show was in its possession prior to receipt and which was not acquired directly or indirectly from the other Party,

(c) information required for credit or insurance of the Services to the extent necessary for such purpose,

(d) developed by the Receiving Party independent of any disclosure hereunder as evidenced by written records,

(e) required to be disclosed or retained under applicable law, regulations or pursuant to a government or judicial order or competent regulatory or governmental authority.

13. Entire Agreement

(1) This Contract supersedes any previous oral or written agreements or arrangements between the Parties relating to the matters contained in this Contract and shall be the entire contract between the Parties.

14. Provisions Severable

(1) Each of the provisions of this Contract is severable and distinct from the others, and if for any reason any one or more of such provisions is found to be ineffective, inoperable or unenforceable it shall be severed and deemed to be deleted from this Contract, and in such event the remaining provisions of this Contract shall continue to have full force and effect.

15. Waiver

(1) No neglect, delay or omission by any Party in enforcing any provision of this Contract shall be construed as a waiver and no single or partial exercise of any rights or remedies of any Party under this Contract will affect or restrict the further exercise or enforcement of any such rights or remedies.

16. Notices

(1) Any notice, consent or approval to be given by any Party to the other Parties pursuant to this Contract shall be in writing (including electronic means) and sent to the Parties addressed at the address set out on the front page of this document or such other address, as such Party may from time to time notify to the other Parties in accordance with the terms of this clause. Service shall be affected either by recorded or special delivery or personally or email and shall be deemed for all purposes to be received on the next business day (business day meaning any calendar day excluding Saturday, Sunday, Christmas Day, Good Friday or a public holiday in Cyprus and in Greece) after being sent (in the case of recorded or special delivery) and on delivery (in the case of personal service).

(2) **The Consultant** shall use electronic means for circulating all documentation and information required for the Project.

For the purposes of this clause electronic means the following emails:

-Investor: nvv@heliossystems.cy

- Consultant: sousanna.charalambidou@tuv.at

- Financial Institution: 116@eurobank.cy, a.zannidou@eurobank.cy

17. Governing law and jurisdiction

(1) This Contract and any non-contractual obligations connected with it is governed by and shall be construed in accordance with the laws of the Republic of Cyprus.

(2) The Parties irrevocably agree that the courts of Nicosia are to have exclusive jurisdiction, and that no other court is to have jurisdiction to:

(a) determine any claim, dispute or difference arising under or in connection with this Contract or in connection with the negotiation, existence, legal validity, enforceability or termination of this Contract, whether the alleged liability shall arise under the law of the Republic of Cyprus or under the law of some other country and regardless of whether a particular cause of action may successfully be brought in the courts of Nicosia ("Proceedings").

(b) grant interim remedies, or other provisional or protective relief.

(3) The Parties submit to the exclusive jurisdiction of such courts and accordingly any Proceedings may be brought against the Parties or any of them or any of their respective assets in such courts.

IN WITNESS WHEREOF the Parties hereto have caused this Contract to come into force with their signature.

Signed and stamped for and on behalf of **the Investor (ML Helios Systems LTD)**

ML HELIOS SYSTEMS LTD

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Signed and stamped for and on behalf of **the Consultant (TÜV AUSTRIA CYPRUS LTD)**

M. ΚΟΥΤΣΟΒΕΝΤΗΣ

TÜV AUSTRIA CYPRUS LTD

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The Financial Institution (EUROBANK LTD)

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Appendix 1